

To:

Rt Hon David Lammy MP
Secretary of State for Justice
Ministry of Justice
102 Petty France
London SW1H 9AJ

Rt Hon Wes Streeting MP
Secretary of State for Health and Social Care
Department of Health and Social Care
39 Victoria Street
London SW1H 0EU

Date: 3 November 2025

Re: Breach of Equality Act 2010 and FPR Part 3A – Request for Ministerial Oversight and Remedy (CA-2024-001342 / BV20D01752)

Dear Secretaries of State,

1. I write to draw your urgent attention to systemic breaches of equality and participation duties within the family justice system, arising from my case (CA-2024-001342 / BV20D01752). The failures described herein have resulted in the denial of procedural fairness, discrimination under the Equality Act 2010, and the violation of my right to a fair hearing under Article 6 ECHR.

2. I am an autistic individual with a formal diagnosis of autism and post-traumatic stress disorder (PTSD). During proceedings in the High Court Family Division, the Court recognised my vulnerability and granted participation measures under Family Procedure Rules (FPR) Part 3A for the February 2024 trial.
3. Immediately after the trial, those measures were effectively revoked without notice, without a recorded order, and without review, notwithstanding my explicit requests, the recommendations made in the autism assessment reports, and a letter from my NHS Consultant Psychiatrist dated 26 March 2025.
4. Without participation measures, I was unable to meaningfully engage in post-trial steps, including draft orders, costs submissions, and appeal preparation. The final judgment and subsequent costs order proceeded without my effective participation, culminating in discriminatory findings that misattributed disability-related behaviours to bad character.
5. The judgment dated 18 April 2024 mischaracterised my autism-related communication style and emotional regulation as “obsessive” and irrational (paragraph 64), despite more than twenty transcript references to my autism and PTSD. The subsequent costs order of 24 May 2024 imposed financial penalties for “disruptions in the courtroom” (paragraph 10(xi)), a finding which is discriminatory, and is unsubstantiated by the oral evidence.
6. These events caused a serious deterioration in my health, resulting in two hospitalisations and ongoing intervention by the **South K & C Crisis and Home Treatment Team**.
7. Since October 2025, I have repeatedly written to the **Ministry of Justice and HM Courts & Tribunals Service** to raise these equality and procedural breaches. Despite multiple formal letters (20–31 October 2025), I have received only administrative deflections classifying my correspondence as a “judicial complaint.” No substantive engagement or remedial action has been offered.
8. This handling is inconsistent with the **Public Sector Equality Duty (s.149, Equality Act 2010)**, the statutory duties under **FPR Part 3A**, and the government’s obligations under the **Autism Act 2009**.
9. As confirmed by **Minister Stephen Kinnock MP** in evidence before the **House of Lords Autism Act 2009 Committee**, “If a body subject to a duty under the guidance fails to

follow it without good reason, it is possible for that failure to be considered by the courts using their public law powers of judicial review. It is technically possible for the Secretary of State to commence such proceedings... or to seek a full account and engage in dialogue about future compliance.”

10. I therefore invite you, as **Secretaries of State for Justice and for Health and Social Care**, to exercise your statutory powers and commence a ministerial inquiry—or equivalent proceedings—into the systemic failures of compliance with **FPR Part 3A** and the **Equality Act 2010** in my case.

11. The absence of any enforcement mechanism under the **Autism Act 2009** has left me, and many others in similar positions, without remedy or redress. As noted by **Tom Purser, CEO of Autism Action**, “The Act has not proven to be enforceable at any level—from individuals to ministers—and no person or agency has been made accountable for its failure.”

12. I respectfully request:

- (a) Written acknowledgment of this letter within **seven (7) days**;
- (b) Confirmation that the **MoJ** and **DHSC** will conduct a joint review of this case and identify procedural and equality failings;
- (c) Referral of this matter to the **Equality and Human Rights Commission** for oversight; and
- (d) The establishment of a formal redress or inquiry mechanism to ensure accountability for breaches of the **Autism Act 2009, Equality Act 2010, and FPR Part 3A**.

13. My rights were infringed, and I did not have a fair trial. I now seek explanation, inquiry, and remedy. The mishandling of this case cannot be allowed to persist unexamined.

Yours sincerely,

Nadia Zahmoul

Nadia Zahmoul

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Case References: CA-2024-001342 / BV20D01752